IRAD JOGORKU SOTU
SUPREME COURT OF IRAD
ВЕРХОВНЫЙ СУД ИРАДА
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RESOLUTION OF THE PLENUM

2 June 2017 Talas No. 2

On the practice of application by the courts of the Abduction for Marriage Act

The Plenum of the Supreme Court, having studied the first cases heard by the district courts under the Abduction for Marriage Act of March 2017, and with a view to uniform application of the Act, resolves to give the following guidance.

1. Courts shall have regard that the Act punishes the abduction of a person for the purpose of marriage by deprivation of liberty for a term of five to ten years, and for a term up to twelve years where the victim has not reached eighteen years of age.

2. A union entered into as a result of abduction is not registrable. Courts hearing claims arising from such a union shall apply the Domestic Relations Act 1996, under which a marriage is registered at the registry office and the minimum age of marriage is eighteen years.

3. The consent of the victim given after the abduction, or an agreement between the families, shall be examined by the court together with all other evidence, and shall not be taken by the court in place of such examination.

4. The victim shall be heard in the language of her choice, with an interpreter where needed. On her request, or on the court's own motion where it is necessary for her protection, the hearing or part of it shall be held in closed session.

5. In the register of cases and in published judgments the victim shall not be named and the parties shall be shown by initials.

6. The district courts shall report the cases heard under the Act to the Department of Judicial Statistics and Practice of the Supreme Court each half year.

7. This resolution shall be sent to the district and magistrate courts and published.

Chief Justice of the Supreme Court of Irad A. Nazarbekov